

Parliament assembled, and by the authority of the same, as follows :—

1. The Office of President of the Board of Trade shall not render the holder thereof incapable of being elected, or of sitting and voting, as a member of the Commons House of Parliament.

*Removal of
disqualification
of President of
Board of Trade
for sitting in
Parliament.*

2. This Act shall be deemed to have had effect as from the coming into operation of the Board of Trade Act, 1909, and accordingly all persons who have at any time since that date held the Office of President of the Board of Trade shall be, and each and every of them is, hereby freed, discharged and indemnified from all penalties, incapacities and disabilities whatsoever incurred by them, or any or either of them, by reason of their sitting or voting as members of the Commons House of Parliament while holding the Office of President of the Board of Trade and shall be deemed to have been capable at all times of being elected to and sitting in the said House.

*Indemnity
of former
Presidents.*

3. This Act may be cited as the President of the Board of Trade Act, 1932.

Short title.

CHAPTER 22.

An Act to provide, during Twelve Months, for the Discipline and Regulation of the Army and the Air Force. [28th April 1932.]

WHEREAS the raising or keeping of a standing army within the United Kingdom in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of land forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of one hundred and forty-eight thousand seven hundred, including those to be employed at the depots in the United Kingdom for the training of recruits for

service at home and abroad, but exclusive of the numbers actually serving within His Majesty's Indian possessions, other than Aden :

7 & 8 Geo. 5
c. 51.

And whereas under the Air Force (Constitution) Act, 1917, His Majesty is entitled to raise and maintain the air force, and it is judged necessary that the whole number of such force should consist of thirty-two thousand, including those employed as aforesaid, but exclusive of the numbers serving as aforesaid :

And whereas it is also judged necessary for the safety of the United Kingdom and the defence of the possessions of this realm that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law or to the Air Force Act, in their duty, that an exact discipline be observed and that persons belonging to the said forces who mutiny, or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military or air force discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow :

And whereas the Army Act and the Air Force Act will expire in the year one thousand nine hundred and thirty-two on the following days :—

(a) In Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, on the thirtieth day of April; and

- (b) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. This Act may be cited as the Army and Air Force Short title.
(Annual) Act, 1932.

2.—(1) The Army Act and the Air Force Act shall be and remain in force during the periods hereinafter mentioned, and no longer, unless otherwise provided by Parliament, that is to say :—

Army Act
and Air
Force
Act to be in
force for
specified
times.

- (a) Within Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, from the thirtieth day of April, one thousand nine hundred and thirty-two, to the thirtieth day of April, one thousand nine hundred and thirty-three, both inclusive; and

- (b) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July, one thousand nine hundred and thirty-two, to the thirty-first day of July, one thousand nine hundred and thirty-three, both inclusive.

(2) The Army Act and the Air Force Act, while in force, shall apply to persons subject to military law or to the Air Force Act, as the case may be, whether within or without His Majesty's dominions.

(3) A person subject to military law or to the Air Force Act shall not be exempted from the provisions of the Army Act or Air Force Act by reason only that the number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the numbers hereinbefore mentioned.

3. There shall be paid to the keeper of a victualling house for the accommodation provided by him in pursuance of the Army Act or the Air Force Act the prices specified in the First Schedule to this Act.

Prices in
respect of
billeting.

AMENDMENTS OF THE ARMY AND AIR FORCE ACTS.

PART I.

AMENDMENTS OF THE ARMY ACT APPLICABLE ALSO (SUBJECT TO EXCEPTIONS AND MODIFICATIONS) TO THE AIR FORCE ACT.

Amendment
of Army
Act, ss. 114,
190.

4.—(1) Section one hundred and fourteen of the Army Act (which relates to the making of annual lists of persons liable to supply carriages and animals) shall be amended in the manner hereinafter mentioned.

(2) Subsection (1B) of the said section (which relates to the returns to be made by persons keeping horses) shall apply also to persons keeping mechanically propelled carriages and trailers, and accordingly in that subsection—

(i) For the words “With respect to horses, the following provisions shall have effect,” there shall be substituted the words, “The provisions “ of this subsection shall have effect with respect “ to horses and mechanically propelled carriages “ and trailers ”;

(ii) For the word “subsection,” wherever that word occurs, there shall be substituted the word “paragraph”; for “(b) the” there shall be substituted “The”; and for the words from “(c) regulations made by” to “may provide” there shall be substituted the words “and the regulations so made may provide”; and

(iii) At the end of the subsection there shall be added the following paragraph:—

“(b) The provisions of the foregoing paragraph shall apply in relation to mechanically propelled carriages and trailers as they apply in relation to horses.”

(3) The subsections of the said section shall be renumbered and rearranged as follows, that is to say, subsection (1B) shall become subsection (1), subsections (1), (2) and (3) shall become subsections (2), (3) and (4) respectively, and subsections (1A), (3A) and (4) shall become subsections (5), (6) and (7) respectively.

(4) At the end of paragraph (40A) of section one hundred and ninety of the Army Act (which said paragraph defines the expression "carriage") there shall be added the words "and the expression 'trailer' means " a carriage constructed or adapted for being drawn by " a mechanically propelled carriage."

PART I.
—cont.

5. Section one hundred and fifteen of the Army Act (which relates to the supply of carriages, vessels, &c., in a case of emergency) shall be amended as follows:— Amendment of Army Act, s. 115.

- (a) In subsection (3A), for the words "a motor car or other locomotive" there shall be substituted the words "a mechanically propelled carriage or trailer," and for the words "any other carriage or horse" there shall be substituted the words "any other carriage or any horse";
- (b) At the end of subsection (7) there shall be added the following words, that is to say, "and as " respects any mechanically propelled carriage " or trailer so requisitioned for the purpose of " being purchased, two hundred and fifty miles " from the premises of the owner shall for the " purposes of subsection (3A) of this section be " the distance within which delivery may be " required."

6. Section one hundred and thirty-three of the Army Act, which provides that in any country in which operations against the enemy are being conducted certain powers of a Secretary of State with respect to prisons and detention barracks (including a power to appoint places to be used as such) may be exercised by the officer commanding-in-chief in the field, shall be amended by the addition thereto of the following subsection:— Amendment of Army Act, s. 133.

"(2) The powers conferred by this section shall continue to be exercisable after the cessation of operations so long as the forces in the country in question are on active service."

7. For section one hundred and seventy-four A of the Army Act (which relates to the use without licences of service recreation rooms for public entertainments) the following section shall be substituted:— Amendment of Army Act, s. 174A.

"174A.—(1) So much of any Act as operates to prohibit as respects particular days, or other-

PART I.
—cont.

wise to restrict or regulate, the keeping, opening or using of premises for purposes of public entertainment or amusement shall not apply to the use, by authority of a Secretary of State or the Admiralty, of any building at a camp, station, or naval establishment, or of any ship, for entertainments or amusements under the direction and control of an officer or committee having official responsibility for such matters.

(2) For the purposes of this section, the expression "public entertainment or amusement" includes public dancing, singing or music, the public performance of stage plays and the giving of cinematograph exhibitions; and in the case of a building or ship which is used for the giving of cinematograph exhibitions, the keeping or storing of films shall be deemed to be part of the use thereof for the giving of the exhibitions."

Attaching
of officers
and soldiers
to Dominion
forces,

8.—(1) After section one hundred and seventy-nine A of the Army Act the following section shall be inserted:—

"179B.—(1) The Army Council may from time to time place any officers or soldiers of the regular forces at the disposal of the military authorities of a Dominion for the purpose of being attached temporarily by those authorities to a Dominion force, and while a person is so attached, he shall, to such extent as the law of the Dominion may provide, be subject to the military law of the Dominion:

Provided that, except while a state of war exists between His Majesty and any foreign power, the Army Council shall not so deal with an officer or soldier without his consent.

(2) While any reserve officer or retired officer, or any warrant officer, non-commissioned officer or man belonging to the army reserve force, is subject to military law, the foregoing provisions of this section shall apply in relation to him as they apply in relation to an officer or soldier of the regular forces."

(2) Section one hundred and seventy-nine B shall be renumbered as section one hundred and seventy-nine C.

9. The amendments specified in the second column of the Second Schedule to this Act, being—

- (a) as respects those contained in Part I of the said Schedule, amendments rendered necessary or desirable by the passing of the Statute of Westminster, 1931;
- (b) as respects those contained in Part II of the said Schedule, amendments rendered necessary or desirable by the changes effected by and under the Government of Ireland Act, 1920, and by changes in the law in force in Northern Ireland; and
- (c) as respects those contained in Part III of the said Schedule, drafting amendments designed to improve the wording of the Act by removing anachronisms and inconsistencies of language, or other amendments of a minor character,

shall be made in or, as the case may be, inserted after the sections of the Army Act specified in the first column of the said Schedule.

10. References in the foregoing sections of this Part of this Act and in the Second Schedule to this Act to the Army Act shall be deemed to include references to the Air Force Act, and the provisions of the said sections and Schedule shall in their application to the Air Force Act have effect subject to any express exceptions specified in the said Schedule, to any of the general modifications set out in Part I of the Second Schedule to the Air Force (Constitution) Act, 1917, which apply, and to the following special modifications, viz., that for the expression "the military law of the Dominion" in section eight of this Act there shall be substituted the expression "the air force law of the Dominion", and that paragraphs (i), (ii), and (iii) of subsection (1B) of section one hundred and fourteen of the Air Force Act shall be deemed to have been enacted as paragraphs (a), (b) and (c) respectively.

PART I.
—cont.

Amend-
ments with
respect to
Dominions
and North-
ern Ireland,
and drafting
and other
minor amend-
ments.

22 Geo. 5, c. 4.
10 & 11 Geo. 5,
c. 67.

Application
to Air
Force Act.

PART II.

AMENDMENTS OF THE ARMY ACT.

11.—(1) Subsection (2) of section one hundred and seventy-nine A of the Army Act (which relates to the attachment to the regular forces of officers and airmen

Provisions
as to
attached
personnel.

PART II. of the air force) shall be amended by the addition, at
—cont. the end thereof, of the following paragraphs:—

“(h) Nothing in this Act shall affect the application to any such airman of section one hundred and forty-five of the Air Force Act;

(i) Sections one hundred and thirty-six to one hundred and forty-four of this Act shall apply to any such officer or airman as if he were an officer or soldier of the regular forces, and for the purposes of their application to any such airman the references in paragraph (8) of section one hundred and thirty-eight of this Act to the Army Council and to this Act shall be construed as references to the Air Council and to section one hundred and forty-five of the Air Force Act, and paragraph (d) of this subsection shall not apply in relation to the said sections one hundred and thirty-six to one hundred and forty-four.”

(2) In subsection (2) of section one hundred and forty-five of the Army Act, for the words “this Act” there shall be substituted the words “any Act”.

Amendment
of Army
Act, s. 183.

12. The power of the Army Council under sections one hundred and eighty-two and one hundred and eighty-three of the Army Act to reduce a warrant officer or non-commissioned officer to any lower grade or to the ranks which, in the case of the forces serving in India, is exercisable also by the Commander-in-Chief of those forces or by such officer as he, with the approval of the Governor-General, may appoint, shall, in the case of forces serving elsewhere outside the United Kingdom, be exercisable also by the officer commanding the forces, if he is not below the rank of major-general and is appointed for that purpose by the Army Council; and, accordingly, the following amendments shall be made in paragraph (2) of the said section one hundred and eighty-three (that is to say):—

(i) For the words “and in India” there shall be substituted the words “and (a) in India”;

(ii) After the words “may appoint,” where those words first occur, there shall be inserted the words—

“(b) elsewhere outside the United Kingdom, the officer commanding the forces, if

not below the rank of major-general and if appointed for that purpose by the Army Council"; and

PART II.
—cont.

- (iii) For the words "and on active service" there shall be substituted the words "and (c) on active service".

PART III.

AMENDMENTS OF THE AIR FORCE ACT.

13.—(1) Section one hundred and seventy-nine of the Air Force Act (which relates to officers and airmen when serving on board His Majesty's ships) shall be amended by the addition thereto of the following proviso :—

Provisions
as to
attached
personnel.

"(d) Any such airman shall, if he is an airman of the regular air force, continue to be subject to the provisions of section one hundred and forty-five of this Act."

(2) Subsection (2) of section one hundred and seventy-nine A of the Air Force Act (which relates to the attachment to the air force of naval or military officers, seamen and soldiers) shall be amended by the addition at the end thereof of the following paragraphs :—

"(i) Nothing in this Act shall affect the application to any such petty officer, non-commissioned officer, seaman or soldier of section one hundred and forty-five of the Army Act or the corresponding provisions in the Acts relating to the naval forces;

(j) Sections one hundred and thirty-six to one hundred and forty-four of this Act shall apply to any such officer, petty officer, non-commissioned officer, seaman or soldier as if he were an officer or airman of the regular air force, and for the purposes of their application to any such petty officer, non-commissioned officer, seaman or soldier, the references in paragraph (8) of section one hundred and thirty-eight of this Act to the Air Council and to this Act shall, as the case may require, be construed as references to the Army Council or the Admiralty and to section one hundred and forty-five of the Army Act or the corresponding provisions of the Acts relating to

PART III.
—cont.

Minor and
consequen-
tial amend-
ments of
Air Force
Act.

the naval forces, and paragraphs (e) and (f) of this subsection shall not apply in relation to the said sections one hundred and thirty-six to one hundred and forty-four."

(3) In subsection (2) of section one hundred and forty-five of the Air Force Act, for the words "this Act" there shall be substituted the words "any Act".

14. The amendments specified in the second column of the Third Schedule to this Act (being amendments of a similar character to amendments made by this Act in the corresponding sections of the Army Act) shall be made in the sections of the Air Force Act specified in the first column of the said Schedule.

PART IV.

CONSTRUCTION AND PRINTING OF AMENDMENTS.

Construc-
tion and
printing of
amend-
ments to
Army and
Air Force
Acts.

15.—(1) Amendments of the Army Act contained in this or any other Act continuing the Army Act shall, subject to any express provision to the contrary, come into operation in any place as from the date from which the Army Act is by this or that other Act continued in that place.

(2) A reference in any enactment (whether passed before or after this Act) to the Army Act shall, unless the context otherwise requires, be construed to refer to the Army Act as amended by any enactment for the time being in force.

(3) Where any enactments or words are directed by this Act or by any other Act (whether passed before or after this Act) to be substituted in the Army Act for any other enactments or words, or to be added to or omitted from the Army Act, then all copies of the Army Act printed after the direction takes effect shall be printed with the said enactments or words added to the said Act, or omitted therefrom, or inserted therein in lieu of the enactments or words for which they are to be substituted, according as the direction requires, and with the sections and subsections numbered in accordance with the direction and with such alterations in cross-headings as the Clerk of the Parliaments may certify to be necessary or expedient in consequence of the amendments so made; and the Army Act shall be construed as if it had, at the time at which the direction takes

effect, been enacted with those additions, omissions or substitutions. PART IV.
—cont.

(4) References in the foregoing provisions of this section to the Army Act shall be deemed to include references to the Air Force Act.

(5) The Acts mentioned in the Fourth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

SCHEDULES.

FIRST SCHEDULE.

Section 3.

PRICES IN RESPECT OF BILLETING.

Accommodation to be provided.	Maximum price.
Lodging and attendance for a soldier where meals furnished.	Tenpence a night for the first soldier and eightpence a night for each additional soldier.
Breakfast as specified in Part I. of the Second Schedule to the Army Act.	Sevenpence each.
Dinner as so specified - - - -	Tenpence.
Supper as so specified - - - -	Fourpence.
Where no meals furnished, lodging and attendance, and candles, vinegar, salt, and the use of fire, and the necessary utensils for dressing and eating his meat.	Tenpence a night for the first soldier and eightpence a night for each additional soldier.
Stable room and ten pounds of oats, twelve pounds of hay, and eight pounds of straw a day for each horse.	Two shillings and threepence a day.
Stable room without forage - - - -	Sixpence a day.
Lodging and attendance for an officer -	Three shillings a night.

Note.—An officer shall pay for his food.

In the application of this Schedule to the Air Force, references to the Air Force Act and to an airman shall be substituted for references to the Army Act and to a soldier.

Sections
9, 10.

SECOND SCHEDULE.

AMENDMENTS OF THE ARMY ACT APPLICABLE ALSO (UNLESS OTHERWISE EXPRESSLY PROVIDED) TO THE AIR FORCE ACT.

PART I.

*Amendments consequential upon the passing of the Statute
of Westminster, 1931.*

- | 1.
Section. | 2.
Amendments to be made. |
|----------------|--|
| S. 4 | In paragraph (6), for the words "His Majesty's forces or any part thereof" there shall be substituted the words "His Majesty's forces, or any forces co-operating therewith, or any part of any such force". |
| S. 6 | In paragraph (d) of subsection (3), after the word "forces" there shall be inserted the words "whether His Majesty's forces or forces co-operating therewith"; and in paragraph (e) for the words "the forces" there shall be substituted the words "any such force as aforesaid". |
| S. 7 | In paragraph (1), after the word "forces" there shall be inserted the words "(including any Dominion force)".

In paragraphs (2) (3) and (4), for the words "any of His Majesty's military, naval or air forces," wherever they occur, there shall be substituted the words "any such force as aforesaid". |
| S. 23 | In paragraph (2), after the words "His Majesty's forces" there shall be inserted the words "(including any Dominion force)". |
| S. 41 | For the words "Provided as follows:—(a) A person" there shall be substituted the words "Provided that a person".

Proviso (b) shall be omitted, and at the end of the section there shall be added the following section:—

"41A. <i>Saving for jurisdiction of civil courts.</i> —Nothing in this Act affects any jurisdiction of any civil court to try a person subject to military law for any offence." |

1.
Section.

2.
Amendments to be made.

2ND SCH.
—cont.

S. 60 In subsection (1), after the words “if in the United Kingdom” there shall be inserted the words “or a Dominion, the law of which does not provide for the civil custody of military convicts”, and after the words “if in India”, there shall be inserted the words “or a Dominion, the law of which provides for the civil custody of military convicts”.

S. 64 After subsection (3) there shall be inserted the following subsection :—

“(3A) A military prisoner or soldier under sentence of detention who was sentenced in a Dominion shall undergo his sentence either in that Dominion, or in the United Kingdom, or in such other place as may be prescribed.”

S. 68 In subsection (2), after the words “unless the context otherwise requires,” there shall be inserted the words “and subject to the provisions of the next succeeding section”, and in paragraph (h) of the subsection, after the words “in India” there shall be inserted the words “a Dominion”.

After section 68 the following section shall be inserted :—

“68A. *Application of certain provisions of Act in a Dominion.*—The provisions of this Act relating to the execution of sentences shall in relation to a Dominion, the law of which provides for the provisional detention by the authorities of the Dominion of military convicts, military prisoners or soldiers sentenced to detention, or for the imprisonment of military prisoners in the prisons of the Dominion, have effect subject to the following modifications :—

“(1) the expression ‘civil custody’ shall include custody of the authorities of the Dominion, whether civil or not, and the expression ‘military custody’ shall not include the custody of the military authorities of the Dominion :

2ND SCH.
—cont.1.
Section.2.
Amendments to be made.

S. 68—cont.

“ (2) the reference in subsection (1) of section sixty-three to a civil prison shall be construed as including a reference to any prison of the Dominion in which a military prisoner under this Act can under the law of the Dominion lawfully be imprisoned :

(3) any provision which expressly or by implication confers a power or imposes a duty on any person to order the committal or transfer to civil custody of a military convict, military prisoner or soldier sentenced to detention, or the release or transfer from civil custody of such a convict, prisoner or soldier, shall be construed as also conferring a power or imposing a duty to take in appropriate cases the proper steps under the law of the Dominion to secure committal or transfer to, or transfer or release from, the custody of the authorities of the Dominion.”

S. 94 After the words “ the Governor General of India; and ” there shall be inserted the following sub-paragraph :—
“ In a Dominion, any person duly authorised in that behalf by His Majesty’s Government in the Dominion; “ and ”; and for the words “ Beyond the limits of the United Kingdom, India and a colony ” there shall be substituted the words “ Out of His Majesty’s dominions ”.

S. 126 After subsection (3) there shall be added the following subsection :—

“ (4) If in the case of a court martial held in a Dominion a person not subject to military law is guilty of any such conduct as is mentioned in this section, the steps, if any, to be taken to secure his punishment shall be such steps as may be competent for the purpose under the law of the Dominion.”

1.
Section.

2.
Amendments to be made.

2ND SCH.
—cont.

S. 129 At the end of the section there shall be inserted the following paragraph (not separately numbered) :—

“ If in the case of a court martial held in a Dominion a counsel contravenes any rule made under this Act with respect to the conduct of counsel at courts martial, the steps, if any, to be taken to secure his punishment shall be such steps as may be competent for the purpose under the law of the Dominion.”

S. 163 In sub-paragraph (b) of subsection (1), for the words “ His Majesty’s forces ”, in the first place where those words occur, there shall be substituted the words “ His Majesty’s forces (including any Dominion force) ”; and for the same words, wherever they subsequently occur, there shall be substituted the words “ those forces ”.

S. 175 After paragraph (12) there shall be inserted the following paragraph :—

“ (13) Any member of a Dominion force who, by virtue of any enactment relating to the attachment of such persons, is subject to military law as an officer, subject, however, to any adaptations and modifications for which provision is made by, or under, that enactment.”

S. 176 After paragraph (11) there shall be inserted the following paragraph :—

“ (12) Any member of a Dominion force who, by virtue of any enactment relating to the attachment of such persons, is subject to military law as a soldier, subject, however, to any adaptations and modifications for which provision is made by, or under, that enactment.”

S.187A For this section there shall be substituted the following section :—

“ 187A. *Application of Act to mandated territories.*—This Act shall apply—

(a) in relation to any territory in respect of which a mandate on behalf of the League of Nations is being exercised by His Majesty’s Government in the

2ND SCH.
—cont1.
Section.2.
Amendments to be made.

S. 187A—cont.

United Kingdom, in like manner as it applies in relation to a British protectorate :

- (b) in relation to any territory in respect of which such a mandate is being exercised by His Majesty's Government in a Dominion, in like manner as it applies in relation to that Dominion."

S. 187B After section 187B there shall be inserted the following section :—

" 187C.—(1) *Application of Act to certain Dominions.*—The Dominions to which this section applies are the Commonwealth of Australia, the Dominion of New Zealand and Newfoundland.

(2) Until the date on which the Parliament of a Dominion to which this section applies adopts section four of the Statute of Westminster, 1931, and until such later date, if any, as may be fixed by the adopting Act for the adoption to take effect, the provisions of this Act shall apply in relation to, and in relation to forces raised in, that Dominion as they apply in relation to, and in relation to forces raised in, any other part of His Majesty's dominions which is situate outside the United Kingdom and British India and is not a Dominion."

S. 189 In subsection (2), after the word "serving," where that word occurs for the second time, there shall be inserted the words "in a Dominion or".

In subsection (6), for the words "out of His Majesty's Dominions" there shall be substituted the words :
"in a Dominion or out of His Majesty's dominions".

S. 190 In paragraph (4), after the word "law" there shall be inserted the words "and (d) any officer of a Dominion force who is for the time being subject to military law":

After paragraph (7) there shall be inserted the following paragraph—" (7A) The expressions 'the forces' and 'His Majesty's forces' do not include His Majesty's Dominion forces."

The preceding amendment does not apply in the case of the Air Force Act.

1.
Section.

2.
Amendments to be made.

2ND SCH.
—cont.

S. 190 For paragraph (23) the following paragraphs shall be
—cont. substituted :—

“(23) The expression ‘Dominion’ means any of the following Dominions, that is to say,—the Dominion of Canada, the Commonwealth of Australia, the Dominion of New Zealand, the Union of South Africa, the Irish Free State, and Newfoundland :

(23A) The expression ‘colony’ means any part of His Majesty’s dominions exclusive of the United Kingdom, of British India and of any Dominion, and includes any British protectorate :”

In paragraph (24), after the words “ the United Kingdom ” there shall be inserted the words “ a Dominion ” and the words “ as above defined ” shall be omitted.

PART II.

Amendments relating to Northern Ireland.

S. 91 In subsection (1), the words “ in the case of England or Scotland ” where they first occur, and the words “ and, “ in the case of Northern Ireland, at the institution in “ which persons settled in the said poor law area are “ received ” shall be omitted; and at the end of the proviso to the subsection there shall be added the words “ or, if that area extends into two or more mental “ hospital districts, to the mental hospital of that one “ of those districts to which from such available “ information as aforesaid, the soldier appears to the “ Army Council, or officer deputed by them, to belong.”

In subsection (4), after the words “ the cost of the maintenance of any such person ” there shall be inserted the words “ in England or Scotland ”.

S. 108A In subsection (1), the words “ and also in Ireland the “ Lord Lieutenant by a like order signified by the Chief “ Secretary or Under Secretary ” shall be omitted.

For paragraph (c) of subsection (5) there shall be substituted the following paragraph :—“(c) In Northern Ireland means a county inspector of the Royal Ulster Constabulary.”

In paragraph (c) of subsection (6), for the words “ In Ireland ” there shall be substituted the words “ In Northern Ireland ”.

2ND SCH.
—cont.1.
Section.2.
Amendments to be made.

- S. 115 In subsection (1), the words “and also in Ireland the
“ Lord Lieutenant by a like order signified by the
“ Chief Secretary or Under Secretary ” shall be omitted.
- S. 122 In subsection (6), the words “the Lord Lieutenant of
Ireland ” shall be omitted.
- S. 166 In subsections (5) and (6), for the words “in Ireland ”
there shall be substituted the words “in Northern
Ireland ”.
- S. 174 In subsection (1), there shall be inserted at the beginning
the words “In Northern Ireland ”; for the words “to
grant, transfer or renew any licence ” there shall be
substituted the words “to grant any certificate ”; for
the words “to obtain or hold ” there shall be sub-
stituted the words “to obtain the grant, transfer or
renewal of and to hold ”; the word “certificates ”
shall be omitted; for the words “such licences ” there
shall be substituted the words “such certificates ”; for
the words “may be granted ” there shall be substituted
the words “may upon production of such certificates
be granted,” and subsection (2) shall be omitted.
- S. 185 For this section there shall be substituted the following
section :—
“ 185. *Special provisions as to prisoners and
prisons in Northern Ireland.*—The jurisdiction and
powers of a Secretary of State under this Act
with respect to military convicts or military
prisoners, or to prisons other than military prisons,
shall in Northern Ireland be exercisable only
subject to the approval of the Ministry of Home
Affairs for Northern Ireland.”
- S. 190 Paragraph (2) shall be omitted.
In paragraph (29), for the words “at Dublin ” there shall
be substituted the words “in Northern Ireland ”.
In paragraph (37) for the word “Ireland ” there shall be
substituted the words “Northern Ireland ”.

PART III.

Drafting and other minor amendments.

- S. 11 For the words “His Majesty’s regulations and orders for
the army, or any similar order ” there shall be sub-
stituted the words “the King’s Regulations for the
Army, or any order ”.

The preceding amendment does not apply in the
case of the Air Force Act.

1. Section.	2. Amendments to be made.
----------------	------------------------------

2ND SCH.
—cont.

- S. 17 For the words “any public or regimental money or goods,” there shall be substituted the words “any public, regimental or garrison property,” and for the words “any such goods” there shall be substituted the words “any such property”.

The preceding amendments to section 17 do not apply in the case of the Air Force Act.

- S. 18 For paragraph (4) there shall be substituted the following paragraph:—

“(4) Steals, embezzles or fraudulently misapplies or receives, knowing it to have been stolen or embezzled, any property belonging to a person subject to military law, or belonging to any regimental band, regimental or garrison mess or regimental or garrison institution, or to the Navy, Army and Air Force Institutes, or any public property; or”

The preceding amendment does not apply in the case of the Air Force Act.

- S. 24 In paragraph (4), for the words from “or to any regimental mess” to the end of the paragraph, there shall be substituted the words “or to any regimental band, “regimental or garrison mess, or regimental or garrison “institution, or to the Navy, Army and Air Force “Institutes, or any public property; or”

The preceding amendment does not apply in the case of the Air Force Act.

- S. 32 In subsection (2) the words “discharged as incorrigible and worthless” shall be omitted.

- S. 40 For the words “part of this Act” there shall be substituted the words “section of this Act.”

- S. 44 For sub-paragraph (g) there shall be substituted the following sub-paragraph:—

“(g) Severe reprimand or reprimand;”

For sub-paragraphs (m) and (mm) there shall be substituted the following sub-paragraphs:—

“(m) In the case of a non-commissioned officer, reduction to the ranks or to a lower grade, or forfeiture, in the prescribed manner, of seniority of rank;

(mm) In the case of a non-commissioned officer, severe reprimand or reprimand;”

2ND SCH.
—cont.1.
Section.2.
Amendments to be made.

S. 44 In proviso (2A), for the words “good or faithful” there
—cont. shall be substituted the words “good and faithful”.

The preceding amendment does not apply in the case of the Air Force Act.

In proviso (3), for the words “to reprimand or severe reprimand” there shall be substituted the words “to be severely reprimanded or reprimanded”.

S. 46 In subsection (9), after the words “King’s Regulations” there shall be inserted the words “for the Army.”

The preceding amendment does not apply in the case of the Air Force Act.

S. 48 In paragraph (8), for the word “prisoner” there shall be substituted the word “person”.

S. 49 In subsection (2), for the word “prisoner” there shall be substituted the word “person”.

S. 54 In paragraph (d) of subsection (1), the words “or until” shall be omitted, and in subsection (3) for the word “discharged” there shall be substituted the word “released”.

S. 56 In subsections (1) and (2), the words “money or” shall be omitted, and in subsection (6) after the words “if he had been tried by a civil court,” there shall be inserted the words “in England for such an offence committed in England”.

Ss. 57, 73, 183 For the words “such officer as the Commander-in-Chief of the forces in India, with the approval of the Governor-General of India in Council, may appoint” (wherever those words occur in the said sections) there shall be substituted the words “such officer as he, with the approval of the Governor-General, may appoint”.

The preceding amendment does not, in the case of any of three sections mentioned, apply in the case of the Air Force Act.

S. 57A In subsection (4), for the word “discharged” there shall be substituted the word “released”.

S. 73 In subsection (3), for the words “in the case of a colony and elsewhere” there shall be substituted the words “elsewhere outside the United Kingdom” and for the words “or a colony or elsewhere” there shall be substituted the words “or elsewhere outside the United Kingdom.”

The preceding amendments to s. 73 (3) do not apply in the case of the Air Force Act.

1.
Section.2.
Amendments to be made.2ND SCH.
—cont.

S. 74 In subsection (1), for the word "abroad" there shall be substituted the words "out of the United Kingdom".

S. 83 In paragraph (5), for the word "home" there shall be substituted the words "to the United Kingdom".

The preceding amendment does not apply in the case of the Air Force Act.

S. 84 In subsection (1), in the expression "twenty-one years of army service" the words "of army" shall be omitted.

The preceding amendment does not apply in the case of the Air Force Act.

S. 102 For the words "this realm" there shall be substituted the words "the United Kingdom".

S. 129 For the words from "Whereas" to "respecting" there shall be substituted the words "The following provisions shall have effect with respect to", and the words "be it therefore enacted as follows" shall be omitted.

S. 137 In paragraph (4), for the words "public or regimental property" there shall be substituted the words "public, "regimental or garrison property, or property belonging to the Navy, Army and Air Force Institutes".

The preceding amendment does not apply in the case of the Air Force Act.

S. 140 In subsection (2), for the words "And any such" there shall be substituted the words "Any such".

S. 143 In subsection (2), after the words "When any" there shall be inserted the words "officers and"; for the words "his soldiers" there shall be substituted the words "his officers and soldiers" and for the words "for himself," in the first place where they occur, there shall be substituted the words "for each officer, including himself".

The preceding amendments to s. 143 (2) do not apply in the case of the Air Force Act.

S. 156 Subsection (3) shall be omitted.

S. 163 In sub-paragraph (b) of subsection (1), the words "the Commissioners of" shall be omitted.

2ND SCH.
—cont.1.
Section.2.
Amendments to be made.

S. 167 In subsection (2), the words from “and the conviction” to the end of the subsection shall be omitted.

S. 179 Paragraph (20) shall be omitted.

The preceding amendment does not apply in the case of the Air Force Act.

S. 182 In sub-paragraph (a) of paragraph (2), for the words “reprimanded or severely reprimanded” there shall be substituted the words “severely reprimanded or reprimanded”, and for the words from “or to be reduced to the bottom” to the end of the sub-paragraph there shall be substituted the words “or, if he was originally enlisted as a soldier but not otherwise, to be reduced to the ranks, or in any case, to be reduced to a lower grade, or to an inferior class of warrant officer (if any), or to the bottom or any other place in the list of the rank which he holds; or”.

S. 183 In paragraph (2), for the words “to any lower grade or to the ranks” there shall be substituted the words “to the ranks or to any lower grade”; and in paragraph (3), for the words “to forfeit seniority of rank, or be reduced to any lower grade, or to the ranks”, there shall be substituted the words “to be reduced to the ranks, or to any lower grade, or to forfeit seniority of rank”.

S. 190 After the words “if not inconsistent with the context” there shall be inserted the words “and subject to any express provision to the contrary”.

In paragraph (4), for the words “it also includes a person”, where those words first occur, there shall be substituted the words “and includes also (a) a person”; for the same words, where they occur for the second time, there shall be substituted the words “(b) a person”; for the words “it also includes any officer” there shall be substituted the words “(c) any officer”;

In paragraph (8), for the words “The expressions ‘regular forces’ and ‘His Majesty’s regular forces’ mean” there shall be substituted the words “The expression ‘regular forces’ means”.

The preceding amendment does not apply in the case of the Air Force Act.

1.
Section.2.
Amendments to be made.2ND SCH.
—cont.S. 190
—cont.

After paragraph (20) there shall be inserted the following paragraph :—

“(20A) The expression ‘United Kingdom’ includes (subject, however, to the provisions of section one hundred and eighty-seven of this Act) the Channel Islands and the Isle of Man :”

Paragraph (25) shall be omitted..

After paragraph (33) there shall be inserted the following paragraph :—

“(33A) The expression ‘steals’ has the same meaning as it has for the purposes of the Larceny Act, 1916”

For paragraph (34) there shall be substituted the following paragraph :—

“(34) The expression ‘Summary Jurisdiction Acts’ :—

- (a) as regards England and Northern Ireland, has the meaning assigned to it by the Interpretation Act, 1889; and
- (b) as regards Scotland, means the Summary Jurisdiction (Scotland) Act, 1908, and any enactment amending that Act.”

For sub-paragraphs (a) to (c) of paragraph (35) there shall be substituted the following sub-paragraphs :—

- “(a) as regards England and Northern Ireland, has the meaning assigned to it by the Interpretation Act, 1889;
- (b) as regards Scotland, means a court within the meaning of the Summary Jurisdiction (Scotland) Act, 1908; and”

Through- For the words “His Majesty’s regular forces,” wherever
out the they occur, there shall be substituted the words
Act. “the regular forces.”

The preceding amendment does not apply in the case of the Air Force Act.

Through- For the words “beyond the seas”, wherever they occur,
out the there shall be substituted the words “out of the
Act. United Kingdom”.

Section 14.

THIRD SCHEDULE.

AMENDMENTS OF THE AIR FORCE ACT.

- | 1.
Section. | 2.
Amendments to be made. |
|----------------|--|
| S. 11 | For the words "His Majesty's regulations and orders for the air force or any similar order" there shall be substituted the words "the King's Regulations for the Air Force or any order". |
| S. 17 | For the words "money or goods" there shall be substituted the word "property," and for the words "such goods" there shall be substituted the words "such property". |
| S. 18 | For paragraph (4) there shall be substituted the following paragraph :—
<div style="padding-left: 40px;">“(4) steals, embezzles, or fraudulently mis-applies or receives, knowing it to have been stolen or embezzled, any property belonging to a person subject to this Act, or to any service mess or band, or to any service institution, or to the Navy, Army, and Air Force Institutes, or any public property; or”</div> |
| S. 24 | In paragraph (4), after the words "service institution" there shall be inserted the words "or to the Navy, Army and Air Force Institutes". |
| S. 46 | In subsection (9), after the words "the King's Regulations," there shall be inserted the words "for the Air Force". |
| S. 84 | In subsection (1), in the expression "twenty-four years of air force service," the words "of air force" shall be omitted. |
| S. 137 | In paragraph (4), after the words "service property" there shall be inserted the words "or property belonging to the Navy, Army and Air Force Institutes". |
| S. 143 | In subsection (2), after the words "When any" there shall be inserted the words "officers and"; for the words "his airmen" there shall be substituted the words "his officers and airmen"; and for the words "for himself," in the first place where they occur, there shall be substituted the words "for each officer, including himself". |

1.	2.
Section.	Amendments to be made.

3RD SCH
—cont.

S. 181 In subsection (6), for the word "private" there shall be substituted the word "aircraftman".

S. 190 In paragraph (4) (as amended in accordance with the preceding Schedule), for the words "subject to air-force law" there shall be substituted the words "subject to this Act".

In paragraph (8), for the words "The expressions 'regular air force' and 'His Majesty's regular air force' mean" there shall be substituted the words "The expression 'regular air force' means".

At the end of paragraph (45) there shall be added the words "other than Dominion forces."

Through- For the words "His Majesty's regular air force"
out the there shall be substituted the words "the regular
Act. air force".

FOURTH SCHEDULE.

Section 15.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
48 Vict. c. 8.	The Army (Annual) Act, 1885.	Section eight.
4 Edw. 7. c. 5.	The Army (Annual) Act, 1904.	Section fourteen.
7 & 8 Geo. 5. c. 51.	The Air Force (Constitution) Act, 1917.	Subsections (4) and (5) of section twelve.
10 Geo. 5. c. 7.	The Army and Air Force (Annual) Act, 1920.	Section twenty-seven.
15 Geo. 5. c. 25.	The Army and Air Force (Annual) Act, 1925.	Section fourteen.